

Tentative Rulings and Resolution Review Hearings
July 6, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to speaking with the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. Law and Motion

IN RE: BRUNET

CASE NUMBER: 26CV-0210439

Tentative Ruling on Petition for Change of Name: Petitioner Heather Brunet seeks to change the name of her minor son. An objection to the name change has been filed by the nonconsenting parent. Additionally, no proof of publication has been filed. All parties should appear today to discuss the petition.

EMERSON-MERTE VS. RICKS, ET AL.

CASE NUMBER: 25CV-0206896

Tentative Ruling on Motion to Set Aside Default: Defendant Chase Ricks moves to set aside default judgment pursuant to CCP 473(b) on the grounds that the default taken against Ricks was the result of mistake, inadvertence, and/or excusable neglect. Plaintiff opposes the Motion.

Merits. CCP 473(b): “The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ...”

The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, the Motion suffers from two substantial defects. First, no copy of the answer accompanied the motion as required. (Defendant did submit a proposed Answer along with the Reply, but the statute requires it to be filed with the application.) Second, the application was made on May 28, 2026. Default was entered November 18, 2025. The six-month deadline was therefore May 18, 2026. The request to set aside was not timely. The standard statutory relief for mistake, inadvertence, surprise, or excusable neglect under Code of Civil Procedure Section 473(b) – the only grounds for relief presented by Defendant – is no longer available, as it is subject to a strict six-month limitation period. Cal Code Civ Proc § 473. The Motion to Set Aside Default is **DENIED**. A proposed order has been lodged and will be modified.

GRINOLS VS. GENERAL MOTORS, LLC

CASE NUMBER: 25CV-0208540

Tentative Ruling on Order to Show Cause re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on May 19, 2026, to all parties and counsel for failure to file a Mandatory Settlement Conference Statement as required by Rule of Court 3.1380(c). No response to the OSC has been filed. Sanctions will be imposed on all parties and counsel in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms the July 28, 2026 trial date.

HAGE, III, ET AL. VS. MERCED FACULTY ASSOCIATES MEDICAL GROUP, INC., ET AL.

CASE NUMBER: 26CV-0210078

Plaintiff filed a Request for Dismissal of Entire Action in this matter on June 30, 2026. The action has been dismissed and all future dates are vacated. The related case, Trillo, et al. v. Hinesley, et al. Case No. 25CV-0209540 remains active with a future hearing date of July 13, 2026 for hearing on Defendant Novo Nordisk's Demurrer, and for Review regarding status of the case. No appearances are necessary on today's calendar.

IN RE KOSOVAN, ET AL.

CASE NUMBER: 26PB-0033398

Tentative Ruling on Three Petitions to Approve Minor Compromise: Alexandra Kosovan seeks an order approving the compromise of claims on behalf of her minor children: Michelle Kosovan, Mark Kosovan, and Matthew Kosovan. California Rules of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition provides the required information. Considering the nature of the minors' injuries and full recovery, the Court is prepared to find that the settlements are in the best interest of the minors, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minors and the minors are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner and minors are required to appear. Counsel will voir dire the Petitioner about the terms of the settlements, any other potential sources to increase the settlement amount, whether the minors have fully recovered and whether the Petitioner understands that once approved, the settlement is final and binding on the minors. An appearance by the Petitioner and the minors is necessary on today's calendar.

MCCAIN VS. EST OF RICHARD CARL RIPLEY, ET AL.

CASE NUMBER: 25CV-0207239

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued to Plaintiff Angela McCain, in pro per, on February 9, 2026, for failure to timely serve pleadings on defendants pursuant to CRC 3.110(b) and failure to timely prosecute. Plaintiff has filed proofs of service on May 5, 2026 and has filed proof of payment of sanctions imposed previously. Based on these efforts, the OSC is **VACATED**, and the matter will not be dismissed at this stage.

However, upon review of the file, the Court notes numerous deficiencies. The proofs of service on file indicate that Plaintiff in her individual capacity, is suing herself, as administrator of her parents estate. It appears to the Court that Plaintiff has named improper parties as defendants in this action, as she is seeking to quiet title as to a John Parker and Mary Parker, not as to the estates of Richard and Dolores Ripley. Additionally, it appears that Plaintiff has failed to record a Notice of Pendency of Action (lis pendens) for the subject property as required by CCP § 761.010(b). Plaintiff is ordered to appear today to discuss: the status of her case, the proper defendants to this action, and providing notice to those defendants.

IN RE: RADIE

CASE NUMBER: 26CV-0210405

Tentative Ruling on Petition for Change of Name: Petitioner Amber Marie Radie seeks to change her minor daughter's name. Proper proof of service of the father is on file. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

IN RE: SCHMIDT

CASE NUMBER: 26CV-0210311

Tentative Ruling on Petition for Change of Name: Petitioner Lawana Lynn Schmidt seeks to change her name to Lawanna Lynn Schmidt. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

SMITH VS. BRIDGEWAY INN & SUITES, ET AL.

CASE NUMBER: 23CV-0203137

Tentative Ruling on Motion to Substitute Successor in Interest: Plaintiff Frederick Smith ("Plaintiff" or "Decedent") moves for an order substituting Margaret Smith ("Successor") as successor in interest to Plaintiff.

Code of Civil Procedure 377.30 et seq. provides that a cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest, subject to Chapter 1 (commencing with Section 7000) of Part 1 of Division 7 of the Probate Code, and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest.

The Court finds that the causes of action alleged in this matter survive Decedent's death within the meaning of Code of Civil Procedure section 377.20, and that Successor has submitted a declaration satisfying the requirements of Code of Civil Procedure section 377.32, including a certified copy of Decedent's death certificate.

The motion to substitute Margaret Smith as successor in interest for Decedent Frederick Smith is **GRANTED**. The caption of this action shall be amended accordingly. Plaintiff is granted leave to file an amended complaint reflecting the substitution within 20 days of today's hearing. A proposed order has been lodged and will be modified.

U.S. BANK TRUST, N.A. VS. SELLS

CASE NUMBER: 22CV-0200669

Tentative Ruling on Motion to Substitute Successor in Interest: Plaintiff U.S. Bank Trust, N.A., as Trustee for LSF9 Master Participation Trust, moves to substitute Charles Sells in place of defendant Joe Tiegue Sells pursuant to Code of Civil Procedure sections 368.5 and 389. The Court is inclined to grant the Motion on the merits. However, as a threshold issue, the Court notes that Charles Sells has not yet appeared in this action. Proof of Service of this Motion by mail is on file. However, to ensure Charles Sells receives actual notice and the opportunity to be heard, the Court will require proof of service of the Motion in the manner of summons. Today's hearing is continued to **Monday, August 3, 2026 at 8:30 a.m. in Department 64**. Counsel may appear today and request an alternative date if desired.

IN RE: WARD

CASE NUMBER: 26CV-0210489

Tentative Ruling on Petition for Change of Name: Petitioners Kailey Ward and Christian Ackley seek to change the last names of their minor daughters to Ackley. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Court tentatively intends to grant the Petition. However, to ensure all parties entitled to notice have received it, Petitioners must appear today to clarify and confirm the relationship of the two minors to Christian Ackley.

9:00 a.m. Review Hearings

BOONE VS. GALVAN, ET AL.

CASE NUMBER: 24CV-0205681

This matter is on calendar for review regarding status of service as to Defendant “Teo” and status of default judgments. At the review hearing on March 16, 2026 and again on May 4, 2026, Plaintiff’s counsel Matthew Malczynski appeared and advised the Court that: 1) the previously imposed monetary sanctions of \$750 would be paid the same day, 2) Plaintiff would dismiss the Defendant identified only as “Teo,” 3) applications for default judgment would be filed as to all other defendants within two weeks.

None of the above have been done despite multiple continuances. Counsel has filed a Declaration indicating additional time is needed to submit applications for default judgments, although he does not identify how much time. Additionally, the declaration does not address the payment of previously imposed monetary sanctions, or the dismissal of Defendant “Teo.” An appearance is necessary on today’s calendar. Failure to appear will result in the issuance of an Order to Show Cause re Dismissal for failure to serve and failure to timely obtain a default judgment. CRC 3.110(b) and (h).

DURBIN, SR, ET AL. VS. MOHAMMADI, ET AL.

CASE NUMBER: 25CV-0208902

This matter is on calendar for review regarding status of proposed settled statement. Plaintiff filed a Motion to Use Settled Statement on May 26, 2026. Plaintiff did not apply for relief ex parte, or notice the motion for hearing. An appearance is necessary on today’s calendar. If the parties do not agree to a proposed settled statement, the Court intends to set Plaintiff’s Motion to Use Settled Statement on July 20, 2026 at 8:30 on the Law and Motion calendar.

EMERSON-MERTE VS. RICKS, ET AL.

CASE NUMBER: 25CV-0206896

This matter is on calendar for review regarding setting a default prove up hearing. This matter is also on the Court’s 8:30 a.m. law and motion calendar for hearing on Chase Rick’s motion to set aside default. The Court’s tentative ruling is to deny the motion to set aside. On July 2, 2026 on the ex parte calendar, the Court set a review regarding setting a default prove up hearing regarding defendant MTGP, Inc. for July 27, 2026 at 9:00. For judicial economy, today’s hearing is continued to **Monday, July 27, 2026 at 9:00 a.m. in Department 64.** No appearances are necessary on today’s calendar.

HAGE, III, ET AL. VS. MERCED FACULTY ASSOCIATES MEDICAL GROUP, INC., ET AL.

CASE NUMBER: 26CV-0210078

Plaintiff filed a Request for Dismissal of Entire Action in this matter on June 30, 2026. The action has been dismissed and all future dates are vacated. The related case, Trillo, et al. v. Hinesley, et al. Case No. 25CV-0209540 remains active with a future hearing date of July 13, 2026 for hearing on Defendant Novo Nordisk's Demurrer, and for Review regarding status of the case. No appearances are necessary on today's calendar.

HARDING VS. ALFONSO, ET AL.

CASE NUMBER: 25CV-0207715

This matter is on calendar for review regarding status of pending issues not adjudicated in the May 27, 2026 trial including the sale of the house and potential allocation of proceedings and setting a trial regarding the truck. Appearances are necessary on today's calendar.

HYDE VS. FRANCIS, ET AL.

CASE NUMBER: 25CV-0207587

DISCLOSURE: Prior to taking the bench, Judge Birss worked in private practice as an attorney. Judge Birss previously represented Denise Francis and James Opps in separate and unrelated proceedings. His representation of both falls outside the time period requiring recusal. That prior representation does not impact his ability to be fair and impartial.

This matter is on calendar for review regarding status of judgment/dismissal. The Court notes that Plaintiff attempted to dismiss the case on May 28, 2026. The clerk cannot process the request for dismissal until the Plaintiff remits the waived court fees pursuant to Government Code section 68637. No status statement has been filed. An appearance is necessary on today's calendar.

NELSON VS. ROMANO, ET AL.

CASE NUMBER: 25CV-0207887

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than December 1, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$16,627.00 US CURRENCY

CASE NUMBER: 25CV-0207097

This matter is on calendar for review regarding status of payment. No status statement has been filed regarding the return of funds to Claimant Jonathan Cooper. An appearance is necessary on today's calendar to provide a status.

WILDMAN VS. CARE OPTIONS MANAGEMENT PLANS AND SUPPORTIVE SEVCES, LLC, ET AL.

CASE NUMBER: 22CV-0199456

This matter is on calendar for review regarding status of settlement. Plaintiff filed a Notice of Settlement of Entire Case on March 2, 2026, indicating that a request for dismissal would be filed within 45 days of February 27, 2026. No request for dismissal has been filed. The Court notes that

both sides have filed CMCs in advance of today's review hearing. However, Plaintiff's CMC indicates that this matter has not been settled and requests a jury trial. Defendant's CMC indicates that the matter has settled but provides no substantive information regarding timeline for dismissal. Both parties are ordered to appear today to clarify the status of the case.